

Table of Contents

1	PART I – LAW(S) GOVERNING THE WEBFORM	3
1.1	Purpose of the webform	3
1.2	Important Check Points while filling up the webform.....	3
2	PART II – ACCESSING THE FORM NO. ADT-1 APPLICATION.....	5
2.1	Application Process for Form No. ADT-1	5
3	PART III – INSTRUCTIONS TO FILL THE WEBFORM	7
3.1	Specific Instructions to fill the Form No. ADT-1 at Field Level	7
3.2	Other instructions to fill Form No. ADT-1.....	10
4	PART IV – KEY POINTS FOR SUCCESSFUL SUBMISSION	11
4.1	Fee rules	11
4.2	Processing Type.....	12
4.3	Useful Links	12

ABOUT THIS DOCUMENT

This Instruction Kit is designed as a step-by-step guide to assist the user in filling up the webform. This document provides references to law(s) governing the webform, guidelines to access the application, instructions to fill the webform at field level and important check points while filling up the webform along with other instructions to fill the webform.

Users are advised to refer to the respective instruction kit for filing of webform.

This document is divided into the following sections:



[Part I – Law\(s\) governing the webform](#)



[Part II – Accessing the Form No.ADT-1 application](#)



[Part III – Instructions to fill the webform](#)



[Part IV – Key points for successful submission](#)

Click on any section link to refer to the particular section.

1 PART I – LAW(S) GOVERNING THE WEBFORM

Pursuant to Section [139\(1\)](#) of the Companies Act, 2013 read with Rule [4\(2\)](#) of the Companies (Audit and Auditors) Rules, 2014.

1.1 Purpose of the webform

Form ADT-1 is filed to intimate the appointment or re-appointment of auditors, covering purposes such as first auditor appointment by the Board/members/C&AG, appointment or re-appointment in AGM, filling of casual vacancy, appointments due to non-reappointment or removal, and appointments made by the Central Government or Tribunal.

1.2 Important Check Points while filling up the webform

- ✓ Please read the instructions and guidelines carefully before filling online application forms.
- ✓ Please ensure that none of the mandatory data field is left blank.
- ✓ Please ensure to attach the required mandatory supporting documents in the specified format only.
- ✓ Please ensure that the business user is associated with the company or authorised by the company to e-file on its behalf (applicable to other business user).
- ✓ Please ensure that the date(s) entered in the form are greater than or equal to the date of incorporation of the company.
- ✓ Please ensure that the dates entered in the form should be less than or equal to the system date ((except the “To date” entered in field 4(i) of ADT-1))
- ✓ Please ensure that SRN of INC-28 is valid and associated with CIN.
- ✓ Please ensure that the period “From date” and period “To date” entered in field no. 4(i) in all sections of joint auditor is overlapping.
- ✓ Please ensure that DIN is not flagged for disqualification.
- ✓ Please ensure that the person signing the webform has a valid and non-expired/ non-revoked DSC.
- ✓ Please ensure that the signatories have an approved DIN or valid PAN or valid Membership number and are associated with the CIN under the selected designation. For the purpose of director, all the designations of director shall be considered. (This shall not be applicable for interim resolution professional/ Resolution professional/ liquidators).
- ✓ Please ensure that DSC of the authorised signatories should have been registered on MCA portal against the DIN/ PAN/ Membership number mentioned in the webform.
- ✓ Please ensure that a resignation letter is received from the Auditor and mandatorily attached in the form in case of casual vacancy arising due to resignation and Auditor has not filed ADT-3, or ADT-3 is not yet approved.
- ✓ Please ensure that no other ADT-1 is pending for approval or payment.

Instruction Kit for Form No. ADT-1
(Notice to the Registrar by company for appointment of auditor)

- ✓ Please ensure that ADT-1 has not been filed by the same CIN for the same financial year except in the following case:
- Removal filed via Form No. ADT-2 which is approved.
 - Resignation filed via Form No. ADT-3 which is approved and has been filed after ADT-1 for the CIN.
 - For subsequent ADT-1, in case previous ADT-1 was filed for casual vacancy due to death of the auditor
 - In case the form is being filed for appointment of joint auditors
 - In case an approved e-form ADT-1 has been marked defective for any financial year, then the filing shall be allowed for that particular financial year

However, this check shall not be applicable in case of appointment is due to casual vacancy (if 'Auditor appointed in case of casual vacancy' is selected in field number 3(b) i.e. "Nature of appointment)

- ✓ If the Auditor (Basis membership number entered in field 4(g) of the form) is already appointed in 20 companies for the same financial year end date, the form shall not be allowed to be filed. From the above calculation, following companies would not be included in the count of 20 companies where:
- Form No. ADT-2 is filed and approved against the membership number of the individual as provided in field 4(g)
 - Form No. ADT-3 is filed and approved against the membership number of the individual in field 4(g)
 - When No. ADT-1 is filed and approved by the Company for appointment of new auditor due to casual vacancy, this company will be excluded from the limit of 20 for the retiring Auditor i.e. the Auditor, whose membership number mentioned in field 7(e) of the ADT-1. This shall not be considered as soon as the retiring auditor files ADT-3.
 - All companies which fall under the categories mentioned in below table and where the Individual with the membership number as provided in field 4(g) is appointed as the auditor.

#	Appointment of Auditor in the following Companies will not be considered for calculation of limit of 20 companies
1	One Person Company
2	Dormant Company
3	Small Company
4	Private Company having paid-up share capital less than one hundred crore Rupee

- ✓ Please ensure that membership number entered in the e-form ADT-1 is valid as per ICAI database

2 PART II – ACCESSING THE FORM NO. ADT-1 APPLICATION

2.1 Application Process for Form No. ADT-1

2.1.1 Initial Submission

2.1.1.1 Option 1

STEP 1: Access MCA homepage

STEP 2: Login to MCA portal with valid credentials¹

STEP 3: Select “MCA services” and further select “Company e-Filing”

STEP 4: Navigate to the header “Compliance Services”

STEP 5: Navigate to “ADT-1 – Appointment of Auditor”

STEP 6: Enter Company Information²

STEP 7: Search CIN using the search option (optional)³

STEP 8: Select CIN form the dropdown option (optional)⁴

STEP 9: Fill up the application

STEP 10: Save the webform as a draft (optional)⁵

STEP 11: Submit the webform

STEP 12: SRN is generated upon submission of webform (The SRN can be used by the user for any future correspondence with MCA.)

STEP 13: Affix the DSC

STEP 14: Upload the DSC affixed pdf document on MCA portal

STEP 15: Pay Fees (In case the user does not successfully upload the DSC affixed PDF within 15 days of SRN generation and complete the payment within 7 days of successful upload of DSC affixed document or due date of filing of the form + 2 days, whichever is earlier, the SRN will be cancelled.)

STEP 16: Acknowledgement is generated

2.1.1.2 Option 2

STEP 1: Access MCA homepage

STEP 2: Access ADT-1 through search bar on MCA homepage (website search)⁶

STEP 3: Login to MCA portal with valid credentials

STEP 4: Enter Company Information²

STEP 5: Search CIN using the search option (optional)³

STEP 6: Select CIN form the dropdown option (optional)⁴

STEP 7: Fill up the application

¹In case Option 1 is selected, the user will have an option to either login immediately after accessing the MCA homepage, or login after selecting “Notice to the Registrar by company for appointment of auditor” in case the user is not already logged in.

²In case the user filling the webform is a Company user then, CIN and Company name will be auto-populated based on the user id from which the user logs in.

³In case the user filling the webform is a Professional user, a search option will be provided on the page allowing the user to search for CIN basis name of Company.

⁴In case the user filing the webform is any other business user, a dropdown option containing a list of all the CIN's and corresponding Company name for Companies where the user is associated shall be displayed.

⁵The option to save the webform as a draft shall be enabled once the user enters the CIN.

⁶In case Option 2 is selected, the user will have an option to either login immediately after accessing the MCA homepage or login after performing the website search.

STEP 8: Save the webform as a draft (optional)⁵

STEP 9: Submit the webform

STEP 10: SRN is generated upon submission of webform (The SRN can be used by the user for any future correspondence with MCA.)

STEP 11: Affix the DSC

STEP 12: Upload the DSC affixed pdf document on MCA portal

STEP 13: Pay Fees (In case the user does not successfully upload the DSC affixed PDF within 15 days of SRN generation and complete the payment within 7 days of successful upload of DSC affixed document or due date of filing of the form + 2 days, whichever is earlier, the SRN will be cancelled.)

STEP 14: Acknowledgement is generated

3 PART III – INSTRUCTIONS TO FILL THE WEBFORM

3.1 Specific Instructions to fill the Form No. ADT-1 at Field Level

Instructions to fill 'ADT-1' are tabulated below at field level. Only important fields that require detailed instructions are explained. Self-explanatory fields are not explained.

Field No.	Field Name	Instructions
1	Corporate Identity Number (CIN)	i. In case of company users, CIN of company shall be pre-filled based on the user id. ii. In case of professional users, a search option shall be provided to search the CIN basis the company name. Either full name of the company or partial name can be used to search the company. iii. In case of other business users, a dropdown option is provided containing the list of CIN with which the user is associated. iv. Should be a valid CIN. Following CIN status are allowed to file:- (a)Active, (b) Under CIRP/Under Liquidation
2 (a)	Name of the company	These fields shall be prefilled based on the CIN entered in field number 1 i.e. "Corporate Identity Number (CIN)" and shall be non-editable.
2 (b)	Address of the registered office of the company	
2 (c)	Email ID of the company	
3(d)	If yes, date of AGM (DD/MM/YYYY)	i. This field shall be enabled and mandatory if the FO user selects second option from the dropdown present in field number 3(b) i.e. "Appointment/ Re-appointment in AGM". ii. Date entered cannot be a future date
4(a)	Date of appointment (DD/MM/YYYY)	i. If the FO user selects option 2a/2b from the dropdown present in field number 3(b) i.e. "Appointment/ Re-appointment", then date entered in 3(d) would be auto populated else the field will be editable. ii. Date entered cannot be a future date
4(c)	Number of auditor(s) appointed	In case 'Yes' selected in field number 4(b) i.e. "Whether joint auditors have been appointed" then the number entered shall be greater than one.
4(e)	Firm Registration Number	i. This field shall be enabled and mandatory if the FO user selects 'Auditor's Firm' in field number 4(d) i.e. "Category of Auditor". ii. Should be a valid Firm Registration Number. iii. Duplicate Membership Number cannot be entered in the form
4(g)	Membership Number of Auditor signing the balance sheet of the company	i. Should be a valid Membership Number ii. Duplicate Membership Number cannot be entered in the form iii. Membership Number of Individual Auditor would be requested irrespective of the option selected in field number 4(d) i.e. "Category of Auditor".
4(i)	Period of account for which appointed	
	From (DD/MM/YYYY)	i. Date entered cannot be a future date

Instruction Kit for Form No. ADT-1
(Notice to the Registrar by company for appointment of auditor)

Field No.	Field Name	Instructions
	To (DD/MM/YYYY)	i. Date entered should be greater than or equal to 'From date' entered in field "From (DD/MM/YYYY)". ii. To date cannot be greater than 5 years
4 (j)	Number of financial year(s) to which appointment relates	1. It will be calculated and prefilled basis the dates mentioned in "From" and "To" Date in the above field. No. of years = year (To date-From Date). 2. Data will be pre-filled only when 'From' date starts with 1st April and 'To' date ends with 31st March, else it will be manually entered. 3. Maximum 5 can be entered and minimum 1 shall be entered. 4. In case data is prefilled, it will non-editable for the user.
4(n)	Number of financial year(s)	1. If "Yes" is selected in 3(a) a) The sum of this field and field 4(j) can't be greater than "10" in case of Auditor's Firm. b) The sum of this field and field 4(j) can't be greater than "5" in case of Individual. 2. Based on number entered, block of fields from '4(q)' to '4(u)' shall be regenerated subject to maximum of 5 times in case category is "Individual" or max 10 times in case category is "Auditor's firm". *If the number of previous appointments exceeds 5 years for an individual or 10 years for an auditor's firm, the information may be provided as an optional attachment.
4(r)	Financial Year Start Date	Start date entered in this field and end date entered number 4(s) i.e. "Financial Year End Date" in a row shall be mutually exclusive to subsequent start and end dates.
4(s)	Financial Year End Date	i. Should be greater than or equal to 'Start date' entered in field number 4(r) i.e. "Financial Year Start Date".
6	Specify the SRN of INC-28 filed with ROC for Notice of order of the Tribunal for appointment of Auditor	i. Shall be enabled and mandatory if FO user selects sixth option from the dropdown present in field number 3(b) i.e. "Auditor appointed by the Tribunal". ii. Enter a valid SRN of INC-28 associated with the CIN.
7(b)	Specify the SRN of relevant form	ADT-1/ 23B/ GNL-2 SRN entered shall be approved SRN associated with the CIN.
8	Attachments	All the attachment shall be either in pdf or.jpg format. The size of each individual attachment can be up to 2MB.
(a) (b)	Copy of the intimation sent by company Copy of written consent given by auditor	These attachments are mandatory.
(c)	Copy of resignation letter tendered by the auditor to the company at the time of resignation	Shall be enabled and mandatory if user selects 'Resignation' in field number 7(a) i.e. "Auditor is appointed due to casual vacancy in the office of auditor due to" and no ADT-3 has been filed against the SRN of ADT-1 entered in field number 7(b) i.e. "Specify the SRN of relevant form".
(d)	Copy of Central Government Order for appointment of Auditor	Shall be enabled and mandatory if 'Auditor appointed by Central Government' is selected in field number 3(b) i.e. "Nature of appointment".

Instruction Kit for Form No. ADT-1
(Notice to the Registrar by company for appointment of auditor)

(e)	Optional attachment(s) - if any	i. This field can be used to provide any other information. Please note that the user has an option to upload up to five optional attachments.
10 10(a)	To be digitally signed by: Designation	Select the relevant option from the dropdown list - Director/ Manager/ Company Secretary/ CEO/ CFO/ Liquidator/ Interim Resolution Professional (IRP)/ Resolution Professional (RP).
10(b)	Director identification number of the director; or DIN or PAN of the manager or CEO or CFO or Interim Resolution Professional (IRP) or Resolution Professional (RP) or Liquidator or Membership number of the Company Secretary	i. If Director selected, DIN shall be entered. ii. If designation selected is Manager or CEO or CFO or Interim Resolution Professional (IRP) or Resolution professional (RP) or Liquidator, should be valid PAN. iii. If Company Secretary selected, Membership number shall be entered in all case other than Section 8 company. In case of Section 8 company and 'company secretary' is selected, either PAN/Membership number shall be entered.

3.2 Other instructions to fill Form No. ADT-1

Buttons	Particulars
Choose File	i. Click the “Choose File” button to browse and select a document that is required to be attached as a supporting to Form No. ADT-1. ii. This is a mandatory field. iii. All the attachments should be uploaded in <i>pdf or .jpg format</i>. The total size of the document being submitted can be up to 10 MB. iv. The user has an option to attach multiple files as attachments within the form.
Save	i. Click on Save button for saving the application in a draft form at any given point in time prior to submitting the webform. ii. The ‘Save’ option will be enabled only after entering the CIN. iii. This is an optional field. iv. On saving the webform, all the information filled in the webform will be saved and can be edited/ updated till the time webform is submitted. v. The previously saved drafts can also be accessed (at a later point in time) using the application history functionality.
Submit	i. This is a mandatory field. ii. When the user clicks on the submit button the details filled in the webform are auto saved and the system verifies the webform. In case errors are detected the user will be taken back to webform and all the relevant error messages shall be displayed. iii. In case at the submission of webform no errors are detected by the system the submission will be successful.

1 PART IV – KEY POINTS FOR SUCCESSFUL SUBMISSION

1.1 Fee rules

Fee Calculation Logic:

S#	Purpose of webform	Normal Fee	Additional (Delay Fee)	Logic for Additional Fees	
				Event Date	Time limit (days) for filing
1	Notice to the Registrar by company for Appointment of auditor	The Companies (Registration offices and Fees) Rules, 2014. specified below	Refer Table 2 below	Date of appointment*	15 days of the date of appointment/ 30 days of the date of appointment in case of IFSC company**
2	Notice to the Registrar by the Company (other than a Government Company for the Appointment of First Auditor	As per The Companies (Registration offices and Fees) Rules, 2014 specified below		Date of Incorporation	30 days from the date of Incorporation of the Company

*System checks if period 'To date' entered in the form is on or before 31 March 2019 and Company has filed GNL-2 form between 1st April 2014 to 20th October 2014 with 'Others' purpose for which status of SRN is 'approved', no fee [both normal fee and additional fee] would be charged.

However, in case of form filing after 30 days, the logic for delay days' calculation for computing the additional fee shall remain same as in case of other than IFSC company i.e. due date shall be considered as (Event Date + 14) even for an IFSC company.

** In case of an IFSC company, the additional fee shall be applicable only after the expiry of 30 days from the date of appointment.

Fee payable is subject to changes in pursuance of the Act, or any rule or regulation made, or notification issued thereunder.

1.1.1 Companies (Registration offices and Fees) Rules, 2014

Table 1

Fees to be charged in case company is having share capital

S#	Nominal Share Capital (INR)	Fee applicable (INR)
1	Less than 1,00,000	200
2	1,00,000 to 4,99,999	300
3	5,00,000 to 24,99,999	400
4	25,00,000 to 99,99,999	500
5	1,00,00,000 or more	600

Normal Fee applicable (INR)

200

Table 2

Additional Fees in case of delay in filing of form

S#	Period of delay	Additional fee applicable (INR)
1	Up to 15 days	1 time of normal fees
2	More than 15 days and up to 30 days	2 times of normal fees
3	More than 30 days and up to 60 days	4 times of normal fees
4	More than 60 days and up to 90 days	6 times of normal fees
5	More than 90 days and up to 180 days	10 times of normal fees
6	More than 180 days	12 times of normal fees

1.2 Processing Type

Form No. ADT-1 shall be processed in STP mode and shall be taken on record through electronic mode without any further processing. Ensure that all particulars in the webform are correct. There is no provision for resubmission of this webform.

1.3 Useful Links

1. Link to access ADT-1: <https://www.mca.gov.in/content/mca/global/en/mca/e-filing/complianceServices/ADT-1.html>
2. FAQs related to e-filing: <https://www.mca.gov.in/bin/dms/getdocument?mds=cFUFzUdS2er1unacUDRoQ%253D%253D&type=open>
3. Payment and Fee related Services: <https://www.mca.gov.in/content/mca/global/en/help-faq/faqs/payment2/payment.html>